

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 09/21/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01486
CASE NAME: JOE CONLEY VS. LINDA'S RESIDENTIAL CARE III LLC
***HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT AND LEAVE TO FILE AN ANSWER**
FILED BY: LINDA'S RESIDENTIAL CARE III LLC
TENTATIVE RULING:

Defendant Linda's Residential Care III LLC and Erlina Portillo's motion to set aside entry of default is **DENIED**.

Defendants move to set aside the default under Code of Civil Procedure section 473(d), which provides that the court "may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code of Civil Procedure § 473(d).)

Plaintiff filed this case for employment related claims, including FEHA disability discrimination and wage and hour claims on July 21, 2022. Plaintiff sued his employer, Linda's Residential Care, and the managing member and CEO of Linda's Residential Care, Erlina Portillo. Plaintiff obtained a default against both Defendants, however, he later set aside that default. It appears the first default was set aside

because the original complaint did not include the amount of damages. Whether or not the first default was proper is not the issue since Plaintiff amended his complaint.

Plaintiff filed a first amended complaint on February 5, 2024. Plaintiff filed proofs of services showing substitute service on both defendants on April 29, 2024. Plaintiff obtained a default against both defendants on June 11, 2024. This motion was filed on April 23, 2026. On the same date, Defendants filed an ex parte application requesting that this motion be heard before the default prove up hearing.

“Where, as here, a motion to vacate is made more than six months after entry of a judgment, a trial court may grant a motion to set aside that judgment as void only if the judgment is void on its face. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441; § 473, subd. (d).) ‘ “A judgment or order is said to be void on its face when the invalidity is apparent upon an inspection of the judgment-roll.” [Citation.]’ (*Dill v. Berquist Construction Co.*, *supra*, at p. 1441.)” (*Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434, 1440.) To determine if the judgment is void on its face, the court reviews the judgment roll, which “is limited to the summons, proof of service of the summons, complaint, request for entry of default, copy of the judgment, notice of any ruling overruling a demurrer interposed by the defendant and proof of service thereof, and, if service was by publication, affidavit for publication and order directing it. ([Code of Civil Proc.] § 670, subd. (a).)” (*Ramos, supra*, 223 Cal.App.4th at 1440.)

Further, “ [c]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation.]’ [Citation.] Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service. [Citations.]” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.)

Proofs of Service

The proofs of service for the summons, first amended complaint and statement of damages (one for Portillo and one for Linda’s Residential Care) show substitute service on April 29, 2024, at 4:58 p.m. with service on John Doe at 5145 Turnball Court in Antioch. John Doe is described as a Latino male, age 28, 5’8”, 180 pounds and an employee. Both Defendants were then mailed copies of the documents the following day.

As to Linda’s Residential Care, Portillo was identified as the person authorized to accept service of process. In the declaration of diligence for service on Portillo it shows two unsuccessful attempts at service at “Business (Linda’s Residential Care): 5145 Turnball Court” on different days and times. The third attempt was “successful” based upon service on John Doe. The notes state that “A young Brazilian-Latino man, around 28 years old, 5’8” tall, with black hair and eyes, weighing about 180 pounds, introduced himself at the door as an employee and offered to deliver the documents to Erlinda Portillo.”

The Court notes that there is a minor discrepancy in the spelling of Turnball Court. The proofs of service reference Turnball Court, however, Portillo’s declaration, Balogh Declaration (RJN D) and the statement of information from the Secretary of State (RJN 1) all refer to Turnbull court. The Court does not find that this apparent minor typographical error in the as-filed proof of service document somehow rendered the service defective.

Service on Portillo

Here, Defendants argue there was a lack of reasonable diligence because there were only two attempts before substitute service was made.

When serving individual defendants by substitute service, a party must first use reasonable diligence in attempting to personally serve the individual. (Code of Civil Procedure section 415.20(b).) No such diligence is required when serving an entity. (Code of Civil Procedure section 415.20(a).)

Case law finds that “in order to avail oneself of substituted service under section 415.20, ‘[t]wo or three attempts to personally serve a defendant at a proper place ordinarily qualifies as “ ‘reasonable diligence.’ ” [Citation.]’ [Citation.]” (*Board of Trustees of Leland Stanford Junior University v. Ham* (2013) 216 Cal.App.4th 330, 337.)

Contra Costa Local Rule 3.7(4) states that “For purposes of Code of Civil Procedure section 415.20(b), a party shows reasonable diligence in attempting personal service by attempting personal delivery in good faith on at least three occasions. The party’s attempts at personal service must occur on at least two different days of the week, and if service is at a dwelling, at least one attempt must occur on a Saturday or Sunday. If a party meets these requirements, a court clerk will find that the reasonable diligence requirement is met.”

As an initial matter, the Court does not read Local Rule 3.7(4) as always requiring three attempts as service in order to show reasonable diligence. Rather, this rule sets a ceiling, not a floor, on the number of service attempts required. The Court here finds that two or three attempts at service shows diligence, depending on the specific situation in the case. Here, the declaration of diligence shows three attempts to serve Portillo with the third attempt resulting in substitute service on John Doe.

Defendants also argue that Plaintiff should have attempted service at 740 Bonnie Lane in Brentwood as the administrative office location for Linda’s Residential or at Portillo’s personal residence. Code of Civil Procedure section 415.20(b) requires service at “the person’s dwelling house, usual place of abode, *usual place of business*, or usual mailing address other than a United States Postal Service post office box...”. Here, service was at 5145 Turnbull Court. Portillo is the owner and operator of Linda’s Residential Care at 5145 Turnbull Court. Defendants do not dispute that Portillo was the administrator of Linda’s Residential Care and was frequently present at that location, but Defendants argue there is no evidence that she was present on the day substitute service was attempted. The Court finds that Linda’s Residential Care at 5145 Turnbull Court was Portillo’s usual place of business and thus, a proper place to conduct substitute service.

Service on Linda’s Residential

Defendants argue that service on Linda’s Residential was invalid because it was not served on an authorized person to receive service on behalf of the company under Code of Civil Procedure section 415.20(a). Defendants argue that John Doe was not an authorized person and that Portillo never received the papers.

Section 415.20, subdivision (a), provides that in lieu of personal service on a corporate officer or authorized agent listed in section 416.10, “a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office ... with the person who is apparently in charge thereof...” (Code of Civil Procedure § 415.20 (a).)

In *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387 the court held that substitute service on a residential gate security guard was valid because the security guard as “a component member of the household and the person apparently in charge.” (*Id.* at 1393.) The court found that defendants had authorized the guard to control access to them and their residence. (*Ibid.*) The court explained that “[s]ervice must be made upon a person whose ‘relationship with the person to be served makes it more likely than not that they will deliver process to the named party.’ [Citation.]” (*Ibid.*)

In *Khourie v. Sabek* (1990) 220 Cal.App.3d 1009 plaintiff attempted to serve a company, however, the company refused to let him enter. The process server left a copy of the summons and complaint with an individual, “apparently in charge” of the office – “i.e., the only person who responded to his attempt to enter.” (*Id.* at 1012-1013.)

In *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742 substitute service on the office manager was valid. (*Id.* at 747.) The court found a declaration of substitute service by the process server and then found that the defendant did not defeat the presumption under Evidence Code section 647. (*Id.* at 751.) The court explained that defendant’s declaration “did not establish that [the person given the papers] was not his office manager, that she could not accept substitute service for him, that the address was not his usual place of business, or anything else along those lines.” (*Id.* at 750.)

The process server’s declaration of diligence (from service on Portillo) states that “A young Brazilian-Latino man, around 28 years old, 5'8" tall, with black hair and eyes, weighing about 180 pounds, introduced himself at the door as an employee and offered to deliver the documents to Erlinda Portillo.” This creates a presumption of service under Evidence code section 647.

Defendants argue that John Doe was improper because no one knows who he was and he could have been a resident of the care facility. Portillo says she does not know “John Doe” and that he was not an employee. Defendants speculate that John Doe might have been a resident, but Portillo has not attempted to identify any such resident. Portillo also declares that some of the facility’s residences have severe mental disabilities, but they are permitted to access the mailbox. Portillo does not explain whether residents can freely access the front door.

Here, Portillo declares that she does not know who John Doe is and that he was not one of her employees. This evidence is sufficient to defeat the presumption under Evidence Code section 647. When that presumption is removed, “the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.” (Evid. Code, § 604.)

According to the process server, John Doe answered the door, introduced himself as an employee and offered to take the papers. While Portillo explains that residences were given access to the mailbox, there is no evidence that residents were given access to the front door. Defendants offer no explanation for how a resident could access the front door. Nor has Portillo identified any resident in the care facility at the time of service that had an appearance similar to John Doe. It is uncontroverted that John Doe met the server at the door and introduced himself as an employee, promising to give the papers to Portillo. The Court has considered Portillo’s declaration and the process server’s declaration of diligence and finds that John Doe was a person “apparently in charge” of the facility. Therefore, service on Linda’s Residential Care was proper.

Statement of Damages

Defendants argue that the default was also void as to both Defendants because Portillo never received the FAC nor Statement of Damages. The proof of services shows that both the FAC and

Statement of Damages were served by substitute service. The motion here is based upon Code of Civil Procedure section 473(d) and requires showing that there is a problem with the documents in the judgment roll. Lack of actual notice is often a consideration under Code of Civil Procedure section 473.5, however, this motion was not brought under that section.

In the moving papers it appears that Defendant might have been arguing that Plaintiff was required to personally serve the statement of damages. In reply, however, Defendant acknowledges that the real issue here is whether Defendants were properly served with the FAC and statement of damages. When a party has not appeared in the case, the statement of damages must be served in the same manner as the summons. (Code of Civil Procedure § 425.11(d)(1).) Thus, substitute service, if done properly, can be used to serve a statement of damages.

Public Policy and Prejudice

Defendants argue that public policy supports granting this motion. While public policy often favors a trial on the merits, the Court requires a valid legal ground for finding the default void.

Defendants also argue that Plaintiff will not be prejudiced, but the majority of cases cited by Defendants involved Code of Civil Procedure section 473(b), which involves a different analysis. In *Grappo v. McMills* (2017) 11 Cal. App. 5th 996, the court found there was a void judgment. Further, the discussion on section 473 and prejudice was quoted from another case discussing 473(b). (*Id.* at 1005.)

Judicial Notice

The Court grants Defendants' requests for judicial notice. Exhibits A, B and D are documents filed in this case and exhibit C is from the California Secretary of State.

The Court grants Plaintiff's request for judicial notice as to exhibit 1, 7 and 8. Exhibits 1 and 8 are records of the state and exhibit 7 is a state regulation. The Court grants the request for judicial notice as to exhibits 2 through 6, however, the Court cannot take judicial notice of all facts stated within the narrative portion of the report. However, the Court can take judicial notice that Portillo is listed as the administrator for Linda's Residential Care located at 5145 Turnbull Court.

While these reports may be appropriate for judicial notice in some respects, Plaintiff is attempting to have the court take the truth of facts stated within the report which goes beyond the boundaries of judicial notice.

2. 9:00 AM CASE NUMBER: C22-02054
CASE NAME: CHRISTOPHER WRIGHT VS. SWINERTON BUILDERS
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

This hearing date has been **DROPPED** from calendar. See Notice filed September 15, 2026.